



Criminal Justice Act (Northern Ireland) 1945

CHAPTER 15

CRIMINAL JUSTICE ACT (NORTHERN IRELAND) 1945

PART I

JURISDICTION AND PROCEDURE

SS.1#6 REP. BY SLR (NI) 1952; SLR (NI) 1953; 1964...

VENUE

- 7 Venue in indictable offences.
S.8 rep. by 1964 c.21 (NI)

CASES STATED

- S.9 rep. by 1964 c.3 (NI)
S.10 rep. by 1964 c.21 (NI)
11 Suspension of sentence on appeal by case stated.
Ss.12#17 rep. by SLR (NI) 1952; 1953 c.18 (NI); 1964...

PROCEDURE

- 18 Procedure on charge.
19 Fiats and consents of Attorney General to be admissible in evidence.

Changes to legislation: Criminal Justice Act (Northern Ireland) 1945 is up to date with all changes known to be in force on or before 16 November 2024. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details) [View outstanding changes](#)

- S.20 rep. by 1964 c.21 (NI)
21 Amendment as to summary proceedings under the Towns Improvement (Ireland) Act, 1854.
S.22 substitutes s.4(1) of 1889 c.69 and s.2(1) of 1906...
S.23 rep. by 1964 c.21 (NI)

PART II

PROVISIONS AS TO OFFENCES, SENTENCES, PENALTIES AND COSTS

OFFENCES

- S.24 rep. by 1969 c.15 (NI)
25 Punishment for child destruction.
26 Provisions as to prosecution of offence of child destruction.
S. 27 rep. by 1981 c. 45
S.28 rep. by SLR (NI) 1952; 1953 c.14 (NI)
29 Prohibition on taking photographs, etc., in court.
S.30 rep. by 1978 c.23; SLR 1980
S.31 rep. by 1950 c.5 (NI)
Ss. 32, 33 rep. by 1998 c. 37

PENALTIES AND COSTS

- S.34 rep. by 1964 c.21 (NI)
35 Powers of Crown Court or county court in relation to fines and forfeited recognizances.
S.36 rep. by 1968 c.10 (NI)

PART III

MISCELLANEOUS

COERCION

- 37 Abolition of presumption of coercion of married woman by husband.

SEARCH WARRANTS

- 38 Power to issue search warrant in respect of offences under s.13 of Criminal Law Amendment Act, 1885.
Ss. 39, 40 rep. by 1996 NI 6
Ss. 41#43 rep. by 1965 c.8 (NI)

PART IV

SUPPLEMENTAL

- 44 Saving for pending proceedings.
45 Interpretation.
S.46 rep. by SLR (NI) 1952
47 Short title and citation.

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SCHEDULES

- First Schedule rep. by 1958 c.9 (NI); 1964 c.21 (NI
- Second Schedule rep. by 1964 c.21 (NI
- Third Schedule rep. by 1969 c.15 (NI
- Fourth Schedule rep. by SLR (NI) 1952

Changes to legislation:

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Changes and effects yet to be applied to :

- s. 18 applied by [2013 c. 15 s. 11\(4\)\(b\)\(ii\)](#)
- s. 18 applied by [S.I. 2020/733 reg. 52\(3\)\(b\)\(ii\)](#) (This amendment not applied to [legislation.gov.uk](#). Regulations revoked prospectively by S.I. 2020/1278, regs. 1(2), 66(4))
- s. 18 applied by [S.I. 2021/1404 reg. 34\(3\)\(b\)\(ii\)](#) (This amendment not applied to [legislation.gov.uk](#). The affecting statutory instrument has no effect. It was made under a procedure which meant that it ceased to have effect 28 days after signing unless it was debated and approved in Parliament within that time. Although it was debated, it was not approved by resolutions of both Houses within the required timeframe, so it has expired with no effect. See the Twelfth Report of Session 2022-23 of the Joint Committee on Statutory Instruments)

Changes and effects yet to be applied to the whole Act associated Parts and Chapters:

Whole provisions yet to be inserted into this Act (including any effects on those provisions):

- s. 22 repealed by [2010 c. 23 Sch. 2](#) (Amendment could not be applied. The relevant affected text is not available.)